

**SUBSTITUTE FOR
HOUSE BILL NO. 5650**

A bill to require the attorney general to submit reports related to certain litigation to certain committees of the legislature; to provide for the powers and duties of certain state governmental officers and entities; to provide sanctions for failing to submit the reports; and to provide for remedies.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. As used in this act, "litigation" means either of the
2 following:

3 (a) An action at law brought by the attorney general on behalf
4 of this state or of the people of this state.

5 (b) An action at law in which the attorney general has
6 intervened and appeared on behalf of the people of this state.

7 Sec. 2. (1) If total state expenditures related to litigation



1 exceed \$250,000.00, or if the attorney general estimates that total
2 state expenditures related to litigation will exceed \$250,000.00,
3 the attorney general shall submit a report regarding the litigation
4 1 time every 6 months to each member of the house of
5 representatives appropriations committee, each member of the house
6 of representatives oversight committee, each member of the senate
7 appropriations committee, and each member of the senate oversight
8 committee. Each report must include all of the following:

9 (a) An accounting of the expenditures, including an estimate
10 of future expenditures.

11 (b) An explanation of the litigation.

12 (c) Justification for the expenditures described in
13 subdivision (a).

14 (2) Not later than 60 days after a final order is entered in
15 litigation described in subsection (1) and all rights of appeal
16 have been exhausted or the time for appeal has expired, the
17 attorney general shall submit a final report regarding the
18 litigation to each member of the house of representatives
19 appropriations committee, each member of the house of
20 representatives oversight committee, each member of the senate
21 appropriations committee, and each member of the senate oversight
22 committee. The report must include both of the following:

23 (a) An accounting of the expenditures.

24 (b) Justification for the expenditures described in
25 subdivision (a).

26 Sec. 3. If the attorney general fails to submit a report in
27 accordance with section 2, both of the following apply:

28 (a) A member of the house of representatives appropriations
29 committee, house of representatives oversight committee, senate



1 appropriations committee, or senate oversight committee may seek
2 judicial relief, including a writ of mandamus, to compel the
3 attorney general to submit the report. The court shall award costs
4 and reasonable attorney fees and may impose a civil fine of not
5 more than \$1,000.00 per day for each day that the report remains
6 overdue. A fine collected under this subdivision must be deposited
7 into the state general fund. A fine imposed under this subdivision
8 must be paid from an appropriation made to the department of
9 attorney general in a general appropriations bill and must not be
10 paid from the state general fund.

11 (b) The auditor general shall submit a report to the
12 legislature that details the attorney general's expenditures
13 related to the litigation, including any violations of this act.